

Applicable Law Acts

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User Query :

Someone created a fake Instagram account using my name, photographs and other profile details. The person is messaging my friends and relatives while pretending to be me and asking them for money because of a supposed emergency. Two of my friends have already transferred money to the account mentioned in those messages. What legal provisions may apply?

Job Id. : qwen3-30b/Scenario 2/Combined Act

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NyaySahayak

AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 66D — Punishment for cheating by personation by using computer resource

The fake Instagram account impersonated the victim and induced third parties to transfer money.

Section 66C — Punishment for identity theft

Only if the offender fraudulently used a password, electronic signature or other protected unique identification feature; use of ordinary name/photos alone is not enough.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 **Section 66D** is the clearest IT Act provision because the account holder pretended to be the victim on a computer resource and used that personation to obtain money.

✓ STRENGTHS & RIGHTS

1 Two actual transfers strongly support the cheating element.

✗ RISKS & OBLIGATIONS

1 Ordinary use of the victim's photographs does not itself establish a separate private-area image offence.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve the fake profile URL, messages, account identifiers and transfer records.

BHARATIYA NYAYA SANHITA (BNS), 2023

APPLICABLE SECTIONS

Section 318 **(4) — Cheating and dishonestly inducing delivery of property**

Friends were deceived into transferring money.

Section 319 **— Cheating by personation**

The offender pretended to be the victim.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The facts fit both cheating involving delivery of property and cheating by personation.

✓ **STRENGTHS & RIGHTS**

1 Actual transfers make the property-inducement element concrete.

✗ **RISKS & OBLIGATIONS**

1 Avoid invented 'economic offence' or old IPC section numbers presented as BNS provisions.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. BNS addresses the substantive fraud; digital proof is addressed separately under the BSA.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 61 — Electronic or digital record

Instagram records and messages are electronic/digital records.

Section 62 — Special provisions as to evidence relating to electronic record

Links proof of contents to **section 63** .

Section 63 — Special provisions relating to electronic records

Relevant to screenshots/messages and transaction records.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- Sections 61-63 are the direct electronic-evidence provisions for the records described.

✓ STRENGTHS & RIGHTS

- 1
- Platform messages and bank records can corroborate the fraudulent scheme.

✗ RISKS & OBLIGATIONS

- 1
- Do not treat a record as a book-of-account entry merely because it is electronic.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1.
- Retain original messages and transaction records, not only screenshots.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The facts show misuse of the victim's identity by an individual scammer, but do not establish a Data Fiduciary/processor relationship or another clear DPDP processing basis against the scammer.

✓ STRENGTHS & RIGHTS

- 1 A restrained 'no direct provision on stated facts' answer avoids conflating identity fraud with Data Fiduciary compliance.

✗ RISKS & OBLIGATIONS

- 1 Different facts about Instagram/platform processing or disclosure could raise DPDP issues, but they are not stated here.

PROCEDURAL NOTES & COMPLIANCE STEPS*Actionable steps for compliance and grievance redressal***COMPLIANCE STEPS**

1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.

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